DEPARTMENT OF HEALTH & HUMAN SERVICES

Public Health Service

Food and Drug Administration
Silver Spring, MD 20993

Melina Dass, Vice President
Regulatory Affairs
Evolus, Inc.
520 Newport Center Drive, Suite 1200
Newport Beach, CA 92660

RE: BLA 761085
JEUVEAU® (prabotulinumtoxinA-xvfs) for injection, for intramuscular use
MA 622

Dear Melina Dass:

The Office of Prescription Drug Promotion (OPDP) of the U.S. Food and Drug Administration (FDA) has reviewed the promotional communication, an Instagram post (post) for JEUVEAU® (prabotulinumtoxinA-xvfs) for injection, for intramuscular use (Jeuveau) submitted by Evolus, Inc. (Evolus) under cover of Form FDA 2253.[1] The post was made by Evolus on both the "evolus" and "jeuveaubyevolus" Instagram accounts. The FDA Bad Ad Program also received a complaint regarding this post for Jeuveau. FDA has determined that the post is false or misleading. Thus, the post misbrands Jeuveau within the meaning of the Federal Food, Drug, and Cosmetic Act (FD&C Act) and makes its distribution violative. 21 U.S.C. 352(a), (n); 321(n); 331(a). 21 CFR 202.1(e)(5); (e)(7)(viii). These violations are concerning from a public health perspective because the promotional communication creates a misleading impression regarding the safety and effectiveness of Jeuveau, a drug with a number of serious and potentially life-threatening risks, including a boxed warning regarding the risk of distant spread of toxin effects.

Prior Communication

OPDP notes that our advisory comments dated November 22, 2019, to Evolus addressed draft promotional communications for Jeuveau with certain similarities to the claims and presentations included in the post addressed in this letter. In these advisory comments, OPDP recommended revisions to draft promotional communications in order to avoid misrepresenting the onset of treatment effect with Jeuveau. We are concerned that Evolus is not representing the benefits of Jeuveau in a truthful and non-misleading manner, despite concerns previously expressed by OPDP.

[1] Posted on Evolus (https://www.instagram.com/jeuveaubyevolus/reel/DWT9yrZEnvl/) and "jeuveaubyevolus" (https://www.instagram.com/reel/DWT9yrZEnvl/?utm_source=ig_web_copy_link&igsh=MzRlODBiNWFlZA==&igsi=MzRlODBiNWFlZA==) verified Instagram accounts. Last accessed on September 28, 2026.

The post contains a reel[2] that begins with a patient, Josephine, sitting down for an interview where she states (emphasis added):

> "I'm excited about **getting rid of my lines**…I'm ready to, like, not have them so much."

The scene transitions to a before treatment video clip on Day 0 and an after treatment video clip on Day 2. In the voiceover during the before and after treatment video clips, Josephine states (emphasis added):

> "I feel really good. I'm really surprised at **how quickly it's kicking in**! And I'm feeling like the **line between my eyebrows is gone**."

Additionally, the reel is accompanied by the following in the caption (emphasis added):

> "**Lines today. Blurred in as little as 2 days**.*…Nope. You're not seeing things. Jeuveau® really does work like that. Josephine is only one of the many patients who loved their results with Jeuveau. 'I feel really good. I'm **really surprised at how quickly it kicked in**!' With our iconic **fast-acting** results…"
> **. . .**
> "***About 50% of patients begin showing improvement after two days. Most patients (~69%) achieve complete results by day 30**."

These claims and presentations are misleading for multiple reasons. First, the claims and presentations misleadingly suggest that treatment with Jeuveau will get "rid of" of frown lines, patients will experience "complete results," and frown lines will be "gone" indefinitely, when this is not the case. According to the FDA-approved Prescribing Information (PI) for Jeuveau (emphasis added), "JEUVEAU is indicated for the **temporary improvement** in the appearance of moderate to severe glabellar lines associated with corrugator and/or procerus muscle activity in adult patients." The efficacy of Jeuveau for this use was evaluated based on the proportion of subjects achieving ≥ 2-point improvement from baseline at maximum frown as assessed independently by both the investigator and subject as a composite endpoint using the Glabellar Line Scale (GLS) at Day 30. While the pivotal trials for Jeuveau included evaluations at specific GLS scores including a GLS score of 0 or "none", these were exploratory endpoints, and no statistical analyses were performed. As such, no alpha was allocated to this analysis, meaning no pre-specified false positive error rate was established. Thus, claims suggesting that frown lines are "gone" or patients experienced "complete" results are not supported. We acknowledge that the full, FDA-approved indication for Jeuveau is included in the post, but not until the close of Josephine's testimonial or unless the viewer manually scrolls down in the caption, neither of which mitigates the misleading impression created by the post.

In addition to the misleading suggestion regarding the magnitude of efficacy, the post also creates a misleading impression regarding the onset of efficacy. Specifically, these claims and presentations suggest that Jeuveau provides faster results (by Day 2) than has been demonstrated. As mentioned above, the primary efficacy endpoint for Jeuveau was assessed

[2] For the purposes of this letter, the term "reel" refers to a feature of Instagram which allows users to record, edit, and create a post with short-form video content.

at Day 30 in the pivotal studies (EV-001 and EV-002). While efficacy data were collected at other time points besides the primary endpoint at Day 30, the timepoint at Day 2 was an exploratory endpoint (i.e., hypothesis generating). Similar to the concerns addressed above, such analysis of this exploratory endpoint has limitations, such as the lack of multiplicity adjustment, which introduces statistical and inferential risks, making it difficult to interpret and draw reliable conclusions and does not ascertain whether the findings were attributable to treatment with Jeuveau, or merely due to chance. Furthermore, this exploratory endpoint at Day 2 assessed response as only a ≥1-point change on the GLS based on separate subject or investigator assessment. A one-grade change may not accurately represent a clinically meaningful intra-subject change because the response threshold for moving to an adjacent category on an assessment scale represents a much smaller level of improvement.

In conjunction with claims and presentations regarding the primary efficacy endpoint, the inclusion of claims and presentations related to the exploratory endpoint at Day 2 conflates the measures of response and confounds consumers' understanding of the efficacy of Jeuveau. These two endpoints do not reflect the same degree of clinical response. The primary endpoint (at Day 30) that was deemed clinically significant was a more stringent ≥ 2-point improvement on the GLS scale and was based on a composite of both investigator and subject assessments, whereas the exploratory endpoint (at Day 2) assessed only a ≥ 1-point improvement and only relied on a single assessment dimension. The intermingling of claims and presentations regarding these two distinct endpoints results in a misleading impression regarding the efficacy of Jeauveu as consumers are unlikely to differentiate between and understand the varying degrees of clinical response and statistical rigor represented throughout the presentation. Therefore, the totality of these claims and presentations in the post misleadingly suggests that treatment benefit with Jeuveau is more favorable, with respect to the magnitude and onset of efficacy, than has been demonstrated. While the patient testimonial in this video may be an accurate reflection of this patient's own experience with Jeuveau, the testimonial does not adequately support the suggestion that all patients taking Jeuveau will experience a similar response. We acknowledge that the SUPER in the reel states "Individual results may vary." However, this does not mitigate the misleading impression created by the post.

The reel features Josephine, a Jeuveau patient, giving a lively and engaging patient testimonial/interview with trendy, upbeat music playing in the background. Josephine appears fashion-forward and beauty-focused in makeup, with aesthetic nails, wearing various pieces of jewelry, and pictured through various outfit changes all while touting the benefits and efficacy of Jeuveau. In addition, there are multiple embedded video clips of before and after treatment with Jeuveau at Day 0, Day 2, and Day 30. The reel is accompanied by the following claims in the caption of the post (emphasis added):

> "…it's no wonder Jeuveau is making moves to Studio @IPSY for our Blur The Lines Masterclass. Because in 2026, we're **blurring the lines between what's found in your beauty bag and what happens in the treatment room**. [**syringe icon**] [**lipstick icon**]"

The totality of these claims and presentations is misleading because it likens the use of an injectable prescription product with an everyday beauty product, oversimplifies the important dosage and administration instructions of Jeuveau and minimizes the risks associated with a

prescription drug product with a boxed warning. Specifically, the claims and presentations imply that the use of Jeuveau, a prescription injectable product intended to be administered by a healthcare provider, is comparable to an everyday beauty product or regimen and can simply be ordered from a cosmetic delivery service such as IPSY and incorporated as a part of a cosmetic routine, similar to a stick of lipstick being stored in “your beauty bag.” However, Jeuveau is associated with important dosage and administration instructions for safe use. According to the DOSAGE AND ADMINISTRATION of the PI:

> “The safe and effective use of Jeuveau depends upon proper storage of the product, selection of the correct dose, and proper reconstitution and administration techniques. Physicians administering JEUVEAU must understand the relevant neuromuscular and/or orbital anatomy of the area involved…”

The suggestion that lines are blurred between Jeuveau, a prescription product, and an over-the counter cosmetic is especially problematic from a public health perspective given the serious risks associated with the use of the product. The PI for Jeuveau includes a boxed warning for the distant spread of toxin effect, contraindications, and multiple warnings and precautions associated with the use of the product.

This misleading suggestion is further compounded because, in contrast to the benefit presentations, the reel fails to present information related to the side effects and contraindications of Jeuveau with a prominence and readability reasonably comparable with the presentation of information relating to the benefits of Jeuveau. Specifically, risk information is presented only at the end of the reel, where it is unlikely to draw the viewer’s attention. It appears only after Josephine concludes her testimonial with the tag line, “Jeuveau, you see me” with the tag line subsequently appearing onscreen for about four seconds against a black background, which typically suggests the close of a presentation. However, a brief narrated statement of the indication and limited risk information does follow with additional unnarrated, fast scrolling risk information appearing after a directive to “ask your doctor if Jeuveau is right for you.” The reel does not present any signal, at anytime throughout, to alert the viewer that important risk information is presented after the close of Josephine’s 38 second testimonial. We acknowledge the prescription status and limited risk information for Jeuveau is disclosed in the lower half of the caption of the post; however, it can only be accessed if the viewer manually scrolls down past additional benefit claims. The overall effect of disclosing risk information in this manner, compared to the presentation Jeuveau’s benefits during the patient testimonial, undermines the communication of risk information and thereby minimizes the risks associated with the use of Jeuveau.

Conclusion and Requested Action

For the reasons described above, the post misbrands Jeuveau within the meaning of the FD&C Act and makes its distribution violative. 21 U.S.C. 352(a), (n); 321(n); 331(a). 21 CFR 202.1(e)(5); (e)(7)(viii).

This letter notifies you of our concerns and provides you with an opportunity to address them. OPDP requests that Evolus take immediate action to address any violations of the FD&C Act. Please submit a written response to this letter within 15 working days from the date of receipt, addressing the concerns described in this letter, listing all promotional communications (with

the 2253 submission date) for Jeuveau that contain representations like those described above, and explaining your plan for the discontinuation of such communications, or for ceasing distribution of Jeuveau.

If you believe that your products are not in violation of the FD&C Act, please include in your submission to us your reasoning and any supporting information for our consideration within 15 working days from the date of receipt of this letter.

The concerns discussed in this letter do not necessarily constitute an exhaustive list of potential violations. It is your responsibility to ensure compliance with each applicable requirement of the FD&C Act and FDA implementing regulations.

Please direct your response to the undersigned at the **Food and Drug Administration, Center for Drug Evaluation and Research, Office of Prescription Drug Promotion, 5901-B Ammendale Road, Beltsville, Maryland 20705-1266**. A courtesy copy can be sent by facsimile to (301) 847-8444. Please refer to MA # 622 in addition to the BLA number in all future correspondence relating to this particular matter. All correspondence should include a subject line that clearly identifies the submission as a Response to Untitled Letter. You are encouraged, but not required, to submit your response in eCTD format. All correspondence submitted in response to this letter should be placed under eCTD Heading 1.15.1.6. Additionally, the response submission should be coded as an Amendment to eCTD Sequence 1617 under BLA 761085. Questions related to the submission of your response letter should be emailed to CDER-OPDP-RPM@fda.hhs.gov.

Sincerely,

{See appended electronic signature page}

Eunice Chung-Davies, PharmD, MBA
Regulatory Review Officer
Division of Advertising & Promotion Review 2
Office of Prescription Drug Promotion

{See appended electronic signature page}

James Dvorsky, PharmD, MPH, RAC, CPH
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This is a representation of an electronic record that was signed electronically. Following this are manifestations of any and all electronic signatures for this electronic record.

/s/

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